

Smt. Savithramma vs Smt. Manjula Bai on 30 January, 2023

KABC0A0018052017

IN THE COURT OF THE IV ADDL. CITY CIVIL AND
SESSIONS JUDGE MAYO HALL UNIT, BENGALURU
(CCH-21)

Dated: This the 30th day of January, 2023

PRESENT:

SRI. V. Nagaraja, LLB, LLM, PGD in CLCF.,
IV Addl. City Civil and Sessions Judge, Bengaluru

OS. No.25640/2017

Plaintiff: 1. Smt. Savithramma
W/o late K. Subba Rao,
Aged about 57 years,
R/at No.37, G.M. Palya,
Bengaluru- 560 075.

(By Sri. Bharath Kumar.V - Adv.)

.. Vs ..

Defendants: 1. Smt. Manjula Bai,
W/o. Late. K. Subba Rao,
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O.S.25640/2017

Aged about 52 years.
2. Rama Bai,
D/o late K.Subba Rao,
Aged about 26 years.
3. Sri.S.Krishna Rao,
S/o late K. Subba Rao,,
Aged about 24 years,

All are R/at No.32,
4th Main, 2nd Cross,
G.M. Palya, Bengaluru-75.

(By Smt.M.Dhanalakshmi -Adv for
D1 to D3)

Date of institution of the Suit	15.06.2017
Nature of the Suit	Partition
Date of commencement of recording evidence	14.02.2020
Date on which the judgment was pronounced	30.01.2023
Total duration	Year/s Month/s Day/s
	05 07 15

(V.NAGARAJA)
IV Addl. City Civil and Sessions
Judge, Bengaluru
3 0.S.25640/2017

JUDGMENT

Plaintiff has instituted this suit seeking for partition and separate possession of half share in the Suit Schedule Properties and for awarding suit costs.

2. Case of the plaintiffs in a nutshell is that, She is legally wedded wife of Late.Sri.K.Subba Rao who died on 13.03.2015 in her house.

3. It is further averred that, defendant No.1 is second wife of above stated Late.Sri.K.Subba Rao and defendant No.2 & 3 are children born to said Late.Sri.K.Subba Rao through defendant No.1.

4. It is further averred that, plaintiff has no issues through Late.Sri.K.Subba Rao.

5. It is further averred that, during the life time of Late.Sri.K.Subba Rao, he had constituted undivided Hindu Joint Family with plaintiff and defendants and for the benefit of joint family, he had purchased suit schedule Item No.1 under registered General Power of Attorney dated 17.05.1995 and agreement of sale dated 17.05.1995 from it's earlier owner Smt.Puttamma W/o. Siddappa. He also purchased suit schedule Item No.2 under registered sale deed dated 18.06.1998 from it's earlier owner Smt.Nagamma W/o. Late.Puttappa. He also purchased suit schedule Item No.3 in the name of first defendant under registered sale deed dated 14.08.2003 from it's earlier owner Sri.P.G.Balakrishna Nair.

6. It is further averred that, during the life time of Late. Sri.K.Subba Rao, he had constructed residential houses in the suit schedule properties and let out the same to various tenants and he used to share the rents to plaintiff and defendants equally for lively hood but after demise of said Late. Sri.K.Subba Rao, plaintiff and defendants started to manage suit schedule properties jointly and collecting the rents and sharing both equally, but recently the defendants started hostile attitude towards plaintiff and also stopped to give rents, so the plaintiff requested them to give her share but they denied for the same by giving evasive answers and recently she came to know that,

defendants are making hectic attempts to alienate the suit schedule properties, in order to deprive her share in the suit schedule properties. Hence, she is constrained to file this suit for partition of suit schedule property and to allot half share in the said properties and also to award mesne profits and suit cost.

7. Whereas defendant No.1 to 3 made appearance through their respective counsel and filed their written statement by denying all plaint allegations except the fact that, Late. Sri.K.Subba Rao died on 13.03.2015.

8. They specifically contended that, first defendant is the sole legally wedded wife of Late. Sri.K.Subba Rao and her marriage with said Late. Sri.K.Subba Rao was solemnized on 20.03.1988, in her parental house ie., in Kulagantte Village, Honnali Taluk, Davanagere, District as per customs and traditions prevailing in their community and defendant No.2 & 3 are born out of their wed lock.

9. They further contended that, infact the plaintiff has suppressed material fact that, plaintiff is wife of Late.Mr. Ramaiah and all her documents including Adhar card, Votar ID show that, she is wife of Late. Mr. Ramaiah. It is further contended that, before plaintiff marring, Late.Mr. Ramaiah she had married one Sri.Venkateshappa, Chakkandahally Village, Malur Taluk, Kolar District and through said Venkateshappa she had a son namely., Mr. Srinivasa, so the said Venkateshappa was the first husband of the plaintiff, after death of said Venkateshappa, the plaintiff married Mr. Ramaiah and through said Mr.Ramaiah, she got two sons namely., 1). Mr. Nagesh, 2). Marappa.

10. It is further contended that, the said Mr.Ramaiah was possessing landed properties and house properties at G.M. Palya and Byrasandra, K.R. Puram Hobli, Bengalore East and said Late. Mr.Ramaiah died in the year 1986. So, plaintiff and her children succeeded the estate of said Late. Mr.Ramaiah and plaintiff had filed O.S.No.10178/2014 before learned Additional City Civil and Session Judge (CCH□1), Bengaluru and another suit O.S.No.2871/2003 before learned XXV ACC&SJ, Bengaluru, seeking for partition and separate possession of her share in the properties of her husband Late.Mr.Ramaiah. In the said suit, the plaintiff has clearly stated that, she is legally wedded wife of Late. Mr.Ramaiah and continued the status of wife of Late.Sri. Ramaiah.

11. It is further contended that, after death of Late. Mr.Ramiah, the plaintiff had executed deed of rectification dated 12.01.1997 in favour of one Mr.Krishnaji Rao and Mr.Jaganath, by rectifying sale deed executed by her late husband Late. Mr.Ramaiah, and in the said rectification deed also she has stated that she is wife of Late.Mr.Ramaiah.

12. It is further contended that, plaintiff is stranger, in fact suit schedule properties are belong to defendant No.1 and her children that is to say suit schedule Item No.1 is belong to third defendant and she has purchased the same, so, same is her absolute property.

13. It is further contended that, the plaintiff was residing in the same locality where these defendant are residing, so plaintiff was working as a Servant in the house of defendants and having knowledge of properties of these defendants. Whereas, husband of the defendant Late. Sri.K.Subba Rao, all of sudden died in the house of defendants, so defendants were in shock due to sudden death of said

Late. Sri.K.Subba Rao, so taking undue advantage of said situation, plaintiff might have taken some documents from the house of defendants. So, defendants have lodged the complaint before Baiyyappanhally Police Station on 16.06.2015 regarding loss of some documents from their house. Such being so, the plaintiff in order to grab the properties of these defendants, she is falsely claiming that she is legally wedded of wife Late.Sri.K.Subba Rao, infact she is not at all a wife of said Late. Sri.K.Subba Rao. Hence, she cannot make any claim over suit schedule properties, hence her suit is liable to be dismissed. On these main grounds and other grounds specified in their written statement, they prayed for dismissal of the suit.

14. On considering the pleadings of the parties, my learned predecessor had framed following issues.

ISSUES

1. Whether the plaintiff proves that she is the legally wedded wife of Late Sri.K.Subba Rao?
2. Whether the defendants prove that by virtue of release deed dated rd 09.07.2017 3 defendant became the absolute owner of the suit schedule property?
3. Whether the plaintiff is entitled for partition in the suit properties. If entitled, what is her share?
4. Whether the defendants prove that item No.3 of the suit properties is self acquired property?
5. What order or decree?

15. In order to prove the case of the plaintiff, she has been examined as PW.1 and got documents marked as Ex.P1 to P24.

16. On the other hand, in order to prove the case of the Defendants, third defendant, Sri.S.Krishna Rao has been examined as DW.1 and got documents marked as Ex.D1 to D14.

17. I have heard arguments of both learned counsel. They also filed written arguments.

18. Perused the records.

19. After perusal, my findings for the above issues are: ☐ Issue No.1 : In the 'Negative' Issue No.2 : 'Does not survive for consideration' Issue No.3 : In the 'Negative' Issue No.4 : Does not survive for consideration' Issue No.5 : As per final order for the following:

REASONS

20. Issue No.1: ☐ As I have noted earlier, in order to prove the case of the plaintiff, she has been examined as PW.1 and she filed her examination ☐ In ☐ chief by way of affidavit by reiterating entire plaint averments as stated above. In support of her oral testimony, she mainly relied upon Ex.P1 to Ex.P.24.

21. On the other hand, in order to substantiate the contention of defendants, the third defendant, Late. Sri.Krishna Rao has examined as DW1 and he filed his examination in chief by way of affidavit by reiterating entire written statement contents and he relied upon Ex.D.1 to D.14.

22. On considering the pleadings, oral and documentary evidence of the parties, at the outset, it is worth to note, it is specific case of the plaintiff that, she is legally wedded wife of Late.Sri.K.Subba Rao. Whereas, first defendant Smt. Manjula Bai is second wife of Late.Sri.Subba Rao and defendant No.2 & 3 are children born to said Late.Sri.K.Subba Rao through first defendant.

23. On the other hand, the defendants have seriously disputed the relationship of the plaintiff with deceased Late,Sri.K.Subba Rao and they specifically contended that, plaintiff is stranger to their family, infact plaintiff is wife of Late. Mr.Ramaiah and all her documents including Adhar card, Votar ID show that, she is wife of late.Mr.Ramaiah and through said Late. Mr.Ramaiah, she got two sons namely., 1) Mr. Nagesh,

2). Mr. Marappa.

24. So, on considering the revival contention of the parties, it is worth to note, well settled law that, plaintiff who approached the court by claiming that, she is legally wedded wife of Late.K.Subba Rao, the burden is upon her to prove the said fact.

25. It is important to note, though the plaintiff pleaded that, she is legally wedded wife of Late.K.Subba Rao but in her cross examination she clearly admitted that., "

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10178□2014

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26. So, from the above clear admission of PW1, it is crystal clear that, she is wife of Late.Mr. Ramaiah.

27. It is further significant to note that, on perusal of Ex.P.13 which is certified copy of plaint in O.S.No.5673/2004 filed by very plaintiff and first defendant, wherein husband name of the plaintiff is shown as Late.Mr.Ramaih and first defendant's husband name is shown as Late. Sri.K.Subba Rao.

28. It is further significant to note that, on perusal of undisputed documents ie., earlier court proceedings ie., Ex.D.11 which is copy of the plaint in O.S.No.10178/2014 filed by very plaintiff and Ex.D.12 which is copy of the plaint in O.S.No.2871/2003 filed by very plaintiff, wherein she has clearly mentioned her husband name is Late.Mr.Ramaiah.

29. So, on considering her own documents, it is clear that plaintiff, Smt. Savithramma is wife of Late.Mr.Ramaiah.

30. It is further significant to note that, on perusal of Ex.D.6 which is evidence of K.Subba Rao in suit filed by very plaintiff in O.S.No. 2871/2003. Wherein, Sri. K.Subba Rao clearly deposed that, plaintiff, Smt.Savithramma is wife of Late. Mr.Ramaiah, so when Late. Sri.K.Subba Rao himself deposed in O.S.No.2871/2003, at undisputed point of time, that plaintiff is wife of Late.Mr.Ramaiah, then the contention of the plaintiff that, she is legally wedded wife of Late. Sri.K.Subba Rao cannot be believable and acceptable.

31. Whereas, learned counsel for plaintiff argued in his oral and written arguments that, though the plaintiff admits that, she has shown her husband's name as Late.Mr.Ramaih in some of the documents and legal proceedings but after demise of Late.Mr.Ramaiah, in the year 1986, the plaintiff re-married Late.Sri.K.Subba Rao on 24.03.1988 and lived together as husband and wife, in support of his arguments, he relied upon Ex.P.7 which is said to have been marriage bond (Vivaha Muchalike Pathra) executed before notary that, Late.Sri.K.Subba Rao married the plaintiff on 24.03.1988 and after said marriage both plaintiff and Sri.Late.Sri.Subba Rao were living together as wife of husband and they also attended various functions as husband and wife as shown in photos Ex.P.16 to P.20. So it can be inferred that, plaintiff is legally wedded wife of Sri.Late.K.Subba Rao.

32. Having regard to the arguments of learned counsel for plaintiff, it is important to note, Hindu Law does not recognize performing of marriage by executing Bond, infact Sec. 7 of Hindu Marriage Act 1995 prescribes mode of performing ceremonies of valid marriage, so under such circumstances, in absence of such ceremonies merely based on Ex.P.7 Bond, it cannot be stated that, plaintiff is legally wedded wife of Late.Sri.Subba Rao, when her own documents and oral admissions prove that, she is wife of Late.Mr.Ramaiah. So, under such circumstances, attending to marriage functions by plaintiff and Late.Sri.K.Subba Rao jointly as shown in photos Ex.P.16 to 20, will not prove valid marriage between plaintiff and Late. Sri.K.Subba Rao. Moreover, it is significant to note that, Sec. 5 of Hindu Marriage Act 1955, imposes condition for valid marriage that, neither party of the marriage should not have living spouse, at the time of marriage. Here in this case, defendant No.1 contended that, her marriage was solemnized with Late.Sri.K.Subba Rao on 20.03.1988 and this fact is not disputed by plaintiff, so even it is presumed for the sake of the arguments that, Late. Sri.K.Subba Rao married the plaintiff on 24.03.1988, then said marriage is not valid marriage because at that time, Late. Sri.K.Subba Rao had already married defendant No.1, who is very much alive. Hence, I don't find any force in the arguments of learned counsel for the plaintiff, regarding validity of

marriage, hence I come to clear conclusion that, plaintiff has utterly failed prove that, she is legally wedded wife Late.Sri.Subba Rao. Hence, I hold this issue No.1 In the Negative.

33. Issue No.2 to 4:□In view of discussion made on Issue No.1 that, plaintiff is not able to prove that, she is legally wedded wife of Late.Sri.Subba Rao, then she has no right to claim over the properties of said Late. Sri.Subba Rao and his family members, so under such circumstances, these issues No.2 & 4 will not survive for consideration and plaintiff is not entitled for seek partition in the suit schedule property. Hence, I hold Issue No.3 in Negative.

34. Issue No.5: For the foregoing reasons assigned on issue No.1, I proceed to pass following:□
ORDER Suit of the plaintiff's is hereby dismissed.

On considering the facts and circumstances, parties are direct to bear their own costs.

Draw decree accordingly.

(Dictated to the stenographer directly on the computer, corrected by me and then pronounced in the open Court today the 30th day of January, 2023.) (V.NAGARAJA) IV Addl. City Civil and Sessions Judge, Bengaluru.

ANNEXURE Witnesses examined for the plaintiff:

PW.1 : Smt. Savithramma Documents exhibited for the plaintiff:

Ex.P1 : Affidavit of Genealogical tree Ex.P2 : Registered sale deed dated 22.08.1990
Ex.P3: Registered sale deed dated 18.06.1988 Ex.P.4 Absolute agreement of sale
dated17.05.1995 Ex.P.5 Registered General Power of Attorney.

Ex.P.6 Death Certificate of Ramaiah Ex.P.7 Joint affidavit Ex.P.8 Death certificate of Sri.K.Subba Rao Ex.P.9 Tax assessment Ex.P.10 4 copy of Deposit amount receipt issued by BESCO Ex.P.11 2 Copies of water bill paid receipt Ex.P.12 Original sale deed in another suit pending in Hosur Ex.P.13 Certified copy of plaint copy Ex.P.14 On□line certified copy of Gift settlement deed.

Ex.P.15 English translation copy of Ex.P.12 sale deed Ex.P.16 to Photos of plaintiff son Mahesha's marriage.

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Ex.P.21 CD of Ex.P16 to 20 photos
Ex.P.22 Certified copy of vakalath of plaintiff
and defendant No.1 in
OS.NO.5679/2004

Ex.P.22(a) Signature of plaintiff Ex.P.22(b) Signature of defendant No.1 Ex.P.23 Certified copy of plaint in O.S.No.08/2016 Ex.P.24 Certified copy of written statement in O.S.No.8/2016 Witnesses examined for the defendant:

DW.1 : Sri. S. Krishna Rao Documents exhibited for the defendant:

Ex.D1 & 2: Two colour photos Ex.D.3: Original sale deed dated 31.08.2015 Ex.D.4: Original Release deed dated 09.05.2017 Ex.D.5 Certified copy of sale deed dated 14.08.2003 Ex.D.6 Certified copy of Evidence given by his defendant No.2 father in OS No. 2871/2003.

Ex.D.7 Death certificate
Ex.P.8 Certified copy of sale deed dated
 20.06.2013

Ex.P.9&10 The endorsement given by the police Ex.P.11 Certified copy of plaint in OS.No. 10178/2014 Ex.P.12 Certified copy of OS No.2871/2003 Ex.D.13 Certified copy of sale deed dated 31.07.2004 Ex.D.14 Certified copy of plaint in OS.NO.307/1992 (V.NAGARAJA) IV Addl. City Civil and Sessions Judge, Bengaluru.

(Judgment pronounced vide separate Judgment) ORDER Suit of the plaintiff's is hereby dismissed.

On considering the facts and circumstances, parties are direct to bear their own costs.

Draw decree accordingly.

IV Addl. City Civil and Sessions Judge, Bengaluru